

TED-(3143)- 2015

THIRD SEMESTER DIPLOMA EXAMINATION IN COMMERCIAL PRACTICE

MERCANTILE LAW

MODEL QUESTION PAPER

Maximum marks:100

Time:3 hours

PART A

I Answer all questions in one or two sentences. Each question carries **two** marks

- 1 Define the term ' agreement '
 - 2 What is express contract
 - 3 Define Fraud
 - 4 Who is an unpaid seller?
 - 5 Define the term power asper Factories Act
- (5x2=10)

PART B

II Answer any five questions. Each question carries **six** marks.

- 1 List out the essentials of offer
- 2 Define the term misrepresentation. Listout the circumstances underwhich it arises
- 3 Listout the different methods by which the contract can be discharged
- 4 Listout the differences between sale and bailment
- 5 How the goods can be classified as per the Sale of Goods Act?
- 6 Listout the objectives of Factories Act
- 7 What are the special benefits enjoyed by women workers as per Factories Act?

(5x6=30)

PART C

Answer one full question from each unit. Each full question carries **fifteen** marks

UNIT I

- III (a) Listout the differences between contract and agreement (5)
- (b) Explain the classification of contract on the basis of legality (10)

OR

- IV (a) "All contracts are agreements, but all agreements are not contracts"-Discuss (10)
- (b) Write the meaning of the following terms:
- (i)quid-pro-quo (ii) Void-ab-initio (5)

UNIT II

V What is public policy? Listout any twelve items considered as against public policy (15)

OR

VI (a) When does a contract terminate by operation of law? (5)

(b) What is meant by breach of contract? What are the remedies available to an aggrieved party on the breach of contract? (10)

UNIT III

VII (a) Define the following: (i) Condition (ii)Warranty (5)

(b) Explain the essentials of a contract of sale (10)

OR

VIII (a) Differentiate between sale and agreement to sell (10)

(b) Write notes on: (i) Pledge (ii) Hypothecation (5)

UNIT IV

IX Listout the obligatory measures to be adopted in a factory for the safety of workers (15)

OR

X (a) List out the different welfare measures as per Factories Act (10)

(b) Illustrate the working hours of adult (5)